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Supreme Court boosts effort by family of former La Mesa man to reclaim Nazi-looted painting

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A 20-year legal odyssey seeking the return of a Nazi-looted painting that once belonged to the German Jewish family of a former La Mesa, California, resident endured its latest twist on March 10 when the U.S. Supreme Court ordered an appellate court to reconsider the fate of the artwork.

The ruling is a win — for now — for the family of Claude Cassirer, a longtime La Mesa resident who died in 2010, five years after he first sued for the return of French artist Camille Pissarro's 1897 Impressionist masterpiece "Rue Saint-Honoré, Après-midi, Effet de Pluie." Cassirer's grandmother was forced to sell the artwork to the Nazis in 1939 as a condition for being able to flee Germany and escape the Holocaust.

The painting now hangs at the Thyssen-Bornemisza Museum in Madrid. The museum insists that it is the rightful owner of the painting, and so far U.S. courts have agreed. Most recently the 9th U.S. Circuit Court of Appeals ruled last year that, while there was no question the Nazis had looted the artwork, Spanish law that allowed the museum to keep the painting took precedent over California law.

But on March 10, the Supreme Court vacated that ruling and ordered the 9th Circuit to reconsider the fate of the artwork in light of a new California law implemented last year that aimed to help families of Holocaust victims and survivors reclaim art looted by the Nazis. The new state law was specifically designed to help the Cassirer family.

"I am very grateful to the Supreme Court, and the State of California, for insisting on applying principles of right and wrong," former San Diego resident David Cassirer, now the lead plaintiff in the case, said in a statement. "As a Holocaust survivor, my late father, Claude Cassirer, was very proud to become an American citizen in 1947, and he cherished the values of this country. He was very disappointed that Spain refused to honor its international obligations to return the Pissarro masterpiece that the Nazis looted from his grandmother. Although he passed away during this long battle, he would be very relieved that our democratic institutions are demanding that the history of the Holocaust not be forgotten."

The author of the California legislation, Assemblymember Jesse Gabriel, D-Encino, said the March 10 order by the Supreme Court "is a victory for Holocaust survivors and their descendants — as well as for justice and morality. I hope that the 9th Circuit will quickly return this priceless masterpiece and finally correct this longstanding historical injustice."

Thaddeus Stauber, counsel for the Thyssen-Bornemisza Collection Foundation, said the museum maintains its claim as the painting's rightful owner.

"Today's brief order gives the 9th Circuit the first opportunity to examine if the new California Assembly Bill is valid and what, if any, impact it may have on the Thyssen-Bornemizsa Collection Foundation's repeatedly affirmed rightful ownership," Stauber said in a statement. "The Foundation, as it has for the past 20 years, looks forward to working with all concerned to once again ensure that its ownership is confirmed with the painting remaining on public display in Madrid."

The Cassirer family were prominent Berlin art dealers who acquired the painting shortly after it was finished in 1897. Claude Cassirer, born in 1921 in Berlin, previously told the Union-Tribune that he remembered seeing the painting as a child in the apartment of his grandmother, Lilly Cassirer Neubauer. As a Jew fearing for her safety as the Nazis came to power, she was forced to sell the painting for $360 to a Nazi appraiser as a mandatory condition for securing an exit visa to England. By some estimates, the painting is now worth about $30 million.

After the war, Neubeauer filed a claim to get the painting back but was told it went missing in the Allied bombing of Munich. In 1958, she received a settlement of about $13,000 from the West German government. She died a few years later while living with Claude Cassirer, her lone heir. She never found out the painting had been auctioned by the Nazis and sold to collectors twice before eventually ending up in the collection of Baron Hans Heinrich Thyssen-Bornemisza, the son of a steel magnate, who lived in Switzerland.

Spain bought the baron's 800-painting collection in 1993 for about $330 million. The museum that bears his name is now one of the most popular in Spain — and the Pissarro is one of its showpieces.

Claude Cassirer, who ended up in New York after fleeing the Holocaust, retired in 1970 to La Mesa after a career as a commercial photographer in Cleveland. It was at his San Diego County home where, in 2000, he received a call from a friend who informed him that his family's Pissarro was not missing — it was hanging in the Spanish museum.

Cassirer sent a letter to Spain's ministry of culture asking for the Pissaro's return in May 2001. Like dozens of other countries, Spain has signed international agreements pledging to return Nazi-looted artworks to their rightful owners. But Spain declined to return the painting to Cassirer, so he sued. He and his children, who took over as plaintiffs after his death, have argued over the years that the museum should have known about — or should have done more to learn about — the Pissarro's tainted history. They argued that under California law, which disallows title to stolen goods, the painting should be returned to them.

The museum has argued that the painting was obtained in good faith and that it had no actual knowledge of the looting. It argued federal law applied, which would mean ownership was governed by Spanish regulations.

A federal judge in Los Angeles and a three-judge panel from the 9th Circuit have consistently sided with the museum while expressing moral misgivings about doing so.

The U.S. Supreme Court previously overturned a 9th Circuit ruling in the case, after which the 9th Circuit certified the question at the heart of the case to the California Supreme Court. But the state Supreme Court declined to hear the question by a 6-1 vote, once again leaving it up to the 9th Circuit to rule.

The hope now for David Cassirer and his family is that the 9th Circuit will interpret the California law passed last year to take precedence over federal law.

"We are grateful the Supreme Court has vacated the 9th Circuit decision and remanded the Cassirers' case for application of California law requiring the return of looted artworks to their rightful owners," plaintiffs' attorneys David Boies and Sam Dubbin said in a statement. "With the applicable law now clearly established, we look forward to finally obtaining justice for the Cassirer family after twenty years of litigation."

The attorneys said they hoped "Spain and its museum will now do the right thing and return the Nazi looted art they are holding without further delay."

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